

Moveable dwelling tenancy agreement (Form 18b)

Residential Tenancies and Rooming Accommodation Act 2008

Part 1 Tenancy information

**Item
1**

1.1 Lessor

Name/trading name

Address

											Postcode	

1.2 Phone

Mobile

ABN (optional)

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

Email

Note – Item 1.2 is optional.

**Item
2**

2.1 Tenant/s

1. Full name/s

Phone

Email

Emergency contact full name/s

Emergency contact phone

Emergency contact email

2. Full name/s

Phone

Email

Emergency contact full name/s

Emergency contact phone

Emergency contact email

3. Full name/s

Phone

Email

Emergency contact full name/s

Emergency contact phone

Emergency contact email

2.2 Address for service (if different from address of the premises in item 5 and 6) Attach a separate list

Item 2.2 is optional. See clause 54(4).

**Item
3**

3.1 Lessor's agent If applicable. See clause 49

Full name/trading name

Address

											Postcode	

3.2 Phone

Mobile

ABN (optional)

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

Email

Note – Item 3.2 is optional.



Moveable dwelling tenancy agreement (Form 18b)

Residential Tenancies and Rooming Accommodation Act 2008

Item 4 Notices may be given to

(Indicate if the email is different from item 1, 2 or 3 above)

4.1 Lessor

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

4.2 Tenant/s

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

4.3 Agent

Email Yes ☐ No ☐

Text message Yes ☐ No ☐ Facsimile Yes ☐ No ☐

Item 5 The park Insert name, address or other description of the moveable dwelling park where the premises or site is.

Item 6 6.1 Location of the premises or site Identify where the moveable dwelling is or is intended to be situated, for example, by its site number.

	Postcode	

6.2 The moveable dwelling Describe the moveable dwelling, for example, caravan, site only.

6.3 Inclusions for the premises. For example, annexe, furniture or other household goods let with the premises. Attach list if necessary.

6.4 Details of current repair orders for the rental premises or inclusions

Item 7 7.1 The term of the agreement is ☐ fixed term agreement ☐ periodic agreement

7.2 Starting on

See clause 4(2)

7.3 Ending on

Fixed term agreements only. For continuation of tenancy agreement, see clause 6

Item 8 Rent \$ ☐ weekly ☐ fortnightly ☐ monthly See clause 8(1) and 17

Item 9 Rent must be paid on the

Insert day. See clause 8(2)

day of each

Insert week, fortnight or month

Moveable dwelling tenancy agreement (Form 18b)

Residential Tenancies and Rooming Accommodation Act 2008

Item 10 Methods of rent payment Insert the ways the rent must be paid.

Note – Under section 83, there must be at least 2 ways. See also clause 8(3)(a).

Method 1	
Method 2	

Details for direct credit

Bank/building society/credit union

BSB no. Account name

Account no. Payment reference

Item 11 Place of rent payment Insert where the rent must be paid. Item 11 is optional. See clause 8(6) to (8)

Item 12 Day of last rent increase Insert the day the rent was last increased for the moveable dwelling, or its site, or both

Note: The lessor/lessor's agent must not increase, or propose to increase, the rent payable by a tenant less than 12 months after the last rent increase for the residential premises. Rent increase requirements do not apply to exempt lessors. The Act provides definitions for an exempt lessor.

Item 13 Rental bond amount \$ See clause 13

Item 14 14.1 The services supplied to the premises for which the tenant must pay See clause 16

Electricity ☐ Yes ☐ No Any other service that a tenant must pay ☐ Yes ☐ No

Gas ☐ Yes ☐ No Type

Sewerage ☐ Yes ☐ No

Item 15 15.1 Are there any rules for the park See clause 22 ☐ Yes ☐ No

15.2 Has the tenant been given a copy of the park rules See clause 22 ☐ Yes ☐ No

Item 16 Number of persons allowed to reside at the premises See clause 23

Item 17 Nominated repairers

17.1 Name and telephone number of the lessor's nominated repairer for each of the following repairs

Electrical repairs		Phone	
Plumbing repairs		Phone	
Other repairs		Phone	

17.2 Are the nominated repairers the tenant's first point of contact for notifying the need for emergency repairs? See clause 32(4)

☐ Yes

☐ No – please provide lessor contact details below

Name Phone

Item 18 The type and number of pets approved by the lessor to be kept at the premises See clauses 35 to 38

Type Number Type Number

For more information on what is defined as a pet and working dog visit the RTA's Renting with pets webpage.

Part 2 Standard Terms

Division 1 Preliminary

1 Interpretation

- (1) In this agreement –
 - (a) a reference to **the premises** includes a reference to any inclusions for the premises stated in item 6.3; and
 - (b) a reference to a numbered section is a reference to the section in the *Residential Tenancies and Rooming Accommodation Act 2008 (the Act)* with that number; and
 - (c) a reference to a numbered item is a reference to the item with that number in part 1 of this agreement; and
 - (d) a reference to a numbered clause is a reference to the clause of this agreement with that number.
- (2) In this agreement, unless the context otherwise requires – **site-only premises** means moveable dwelling premises that consist only of the site where a moveable dwelling is, or is intended to be, situated.

2 Terms of moveable dwelling tenancy agreement ss 52 and 54–56

- (1) This part states, under section 55, the standard terms of a moveable dwelling tenancy agreement.
- (2) The Act also imposes duties on, and gives entitlements to, the lessor and tenant that are taken to be included as terms of this agreement.
- (3) The lessor and tenant may agree on other terms of this agreement (**special terms**).
- (4) If the premises are moveable dwelling premises in a moveable dwelling park stated in item 5 (**the park**), any park rules for the time being in force are taken to be terms of this agreement.
- (5) A duty or entitlement under the Act overrides a standard term or special term if the term is inconsistent with the duty or entitlement.
- (6) A standard term overrides a special term if they are inconsistent.
Note – Some breaches of this agreement may also be an offence under the Act, for example, if –
 - the lessor or the lessor's agent enters the premises in contravention of the rules of entry under sections 192 to 199; or
 - the tenant does not sign and return the condition report to the lessor or the lessor's agent under section 65.
- (7) A breach of this agreement may also be an offence under the Act.
Examples for subclause (7) –
 - 1 It is an offence for the lessor or lessor's agent to enter the premises in contravention of the rules of entry under sections 192 to 199.
 - 2 It is an offence if the tenant does not sign and return the condition report to the lessor or lessor's agent under section 65.

3 More than 1 lessor or tenant

- (1) This clause applies if more than 1 person is named in item 1 or 2.
- (2) Each lessor named in item 1 must perform all of the lessor's obligations under this agreement.
- (3) Each tenant named in item 2 –
 - (a) holds their interest in the tenancy –
 - (i) if a special term states the tenants are joint tenants—as a joint tenant; or
 - (ii) otherwise—as a tenant in common; and
 - (b) must perform all the tenant's obligations under this agreement.

Division 2 Entering tenancy

4 Start of tenancy

- (1) The tenancy starts on the day stated in item 7.2.
- (2) However, if no day is stated or if the stated day is before the signing of this agreement, the tenancy starts when the tenant is or was given a right to occupy the premises.

5 Entry condition report – s 65

- (1) The lessor or lessor's agent must prepare, in the approved form, and sign a condition report for the premises.
- (2) A copy of the condition report must be given to the tenant on or before the day the tenant occupies the premises under this agreement.

- (3) If the tenant does not agree with the condition report, the tenant must mark the copy of the report in an appropriate way to show the parts the tenant disagrees with.
- (4) The tenant must sign and return the copy of the condition report to the lessor or lessor's agent no later than 7 days after the later of the following days –
 - (a) the day the tenant occupies the premises;
 - (b) the day the tenant is given the copy of the condition report.
- (5) After the copy of the condition report is returned to the lessor or lessor's agent by the tenant, the lessor or lessor's agent must make a copy of the condition report and return it to the tenant within 14 days.
- (6) However, the lessor or lessor's agent does not have to prepare a condition report for the premises if –
 - (a) this agreement has the effect of continuing the tenant's right to occupy the premises under an earlier residential tenancy agreement; and
 - (b) in accordance with the Act, a condition report was prepared for the premises for the earlier residential tenancy agreement.
- (7) If a condition report is not prepared for this agreement because subclause (6) applies, the condition report prepared for the earlier residential tenancy agreement is taken to be the condition report for this agreement.

6 Continuation of fixed term agreement – s 70

- (1) This clause applies if –
 - (a) this agreement is a fixed term agreement; and
 - (b) none of the following notices are given, or agreements or applications made, before the day the term ends (**the end day**) –
 - (i) a notice to leave;
 - (ii) a notice of intention to leave;
 - (iii) an abandonment termination notice;
 - (iv) a notice, agreement or application relating to the death of a sole tenant under section 324A;
 - (v) a separate written agreement between the lessor and tenant under section 277(a) to end this agreement.
- (2) This agreement, other than a term about this agreement's term, continues to apply after the end day on the basis that the tenant is holding over under a periodic agreement.
Note – For more information about certain notices, see the information statement.

7 Costs apply to early ending of fixed term agreement – s 357A

- (1) This clause applies if –
 - (a) this agreement is a fixed term agreement; and
 - (b) the tenant ends this agreement before the term ends other than in a way permitted under the Act.
- (2) The tenant must pay the reletting costs under section 357A(3).
Note – For when the tenant may end this agreement early, under the Act, see clause 46 and the information statement.
- (3) This clause does not apply if, after experiencing domestic violence, the tenant ends the tenant's interest in this agreement under chapter 5, part 1, division 3, subdivision 2A of the Act.
 For more information visit the Domestic violence in a rental property webpage on the RTA website.

Division 3 Rent

8 When, how and where rent must be paid – ss 83 – 85

- (1) Subject to clause 17, the tenant must pay the rent stated in item 8.
- (2) The rent must be paid on the days stated in item 9.
- (3) The rent must be paid –
 - (a) in a way stated in item 10; or*Note* – Under section 83, at least 2 ways for the tenant to pay the rent must be stated in this agreement.

- (b) in a way agreed after the signing of this agreement by –
 - (i) the lessor or tenant giving the other party a notice proposing a way; and
 - (ii) the other party agreeing to the proposal in writing; or
 - (c) if the lessor or lessor's agent intends to change the way rent is paid to a way that is not stated in item 10 and no way is agreed to after the signing of this agreement – in a way the lessor or lessor's agent proposes by notice to the tenant under section 84A.
- (4) The lessor or lessor's agent must give the tenant a notice advising of the costs associated with the ways to pay rent offered to the tenant that the tenant would not reasonably be aware of if the lessor or lessor's agent knows or could reasonably be expected to find out about the costs.
- (5) Also, the lessor or lessor's agent must declare any financial benefit the lessor or lessor's agent may receive if the tenant uses a particular way to pay rent.
- (6) If a place is stated in item 11, the rent must be paid at the place.
- (7) If, after the signing of this agreement, the lessor gives a notice to the tenant stating a place, or a different place, for payment of rent and the place is reasonable, the rent must be paid at the place while the notice is in force.
- (8) If no place is stated in item 11 and there is no notice stating a place, the rent must be paid at an appropriate place.

Examples of an appropriate place –

- the lessor's address for service
- the office of the lessor's agent

9 Rent in advance – s 87

The lessor or lessor's agent may require the tenant to pay rent in advance only if the payment is not more than 2 weeks rent.

Note – Under section 87(2), the lessor or the lessor's agent must not require payment of rent under this agreement in a period for which rent has already been paid.

10 Rent increases – ss 91 and 93

- (1) If the lessor proposes to increase the rent, the lessor must give notice of the proposal to the tenant.
- (2) The notice must state –
 - (a) the amount of the increased rent; and
 - (b) the day from when the rent is payable; and
 - (c) if the lessor is not an exempt lessor under the Act – the day the rent was last increased for the premises.
- (3) The day from when the increased rent is payable must not be earlier than the later of the following –
 - (a) 2 months after the day the notice is given;
 - (b) 12 months after the last rent increase for the premises in accordance with section 93.
- (4) Subject to an order of a tribunal, the increased rent is payable from the day stated in the notice, and this agreement is taken to be amended accordingly.
- (5) However, the increased rent is payable by the tenant only if –
 - (a) the rent is increased in compliance with this clause and the Act; and
 - (b) the increased rent is not payable earlier than 12 months after the last rent increase for the premises in accordance with section 93; and
 - (c) the increase in rent does not relate to –
 - (i) compliance of the premises with the prescribed minimum housing standards; or
 - (ii) keeping a pet or working dog at the premises.
- (6) Also, if this agreement is a fixed term agreement, the rent may not be increased before the term ends unless –
 - (a) this agreement provides for the rent increase; and
 - (b) this agreement states the amount of the increase or how the amount of the increase is to be worked out; and
 - (c) the increase is made in compliance with the matters mentioned in paragraph (b).

- (7) The period mentioned in subclauses (3)(b) and (5)(b) applies whether the last rent increase for the premises was for the dwelling, its site or both.

11 Application to tribunal about rent increase – s 92

- (1) After the lessor gives the tenant notice of a proposed rent increase, the tenant may apply to the tribunal for an order reducing or setting aside the amount of the proposed increase if the tenant believes the increase –
 - (a) is excessive; or
 - (b) is not payable under clause 10.
- (2) However, the application must be made –
 - (a) within 30 days after the tenant receives the notice; and
 - (b) if this agreement is a fixed term agreement – before the term of this agreement ends.

12 Rent decreases – s 94

Under section 94, the rent may decrease in certain situations.

Note – For information about the situations, see the information statement.

Division 4 Rental bond

13 Rental bond required – ss 111 and 116

- (1) If a rental bond is stated in item 13, the tenant must pay to the lessor or the lessor's agent the bond –
 - (a) if a special term requires the bond to be paid at a stated time – at the stated time; or
 - (b) if a special term requires the bond to be paid by instalments – by instalments; or
 - (c) otherwise – when the tenant signs this agreement.

Note – There is a maximum rental bond that may be required. See sections 112(1) and 146 and the information statement.

- (2) The lessor or the lessor's agent must, within 10 days of receiving the rental bond or a part of the bond, pay it to the authority and give the authority a notice, in the approved form, about the bond.
- (3) The rental bond is intended to be available to financially protect the lessor if the tenant breaches this agreement.

Example – The lessor may claim against the rental bond if the tenant does not leave the premises in the required condition at the end of the tenancy.

Note – For how to apply to the authority or tribunal for the rental bond at the end of the tenancy, see sections 125 to 141 and the information statement.

14 Increase in rental bond – s 154

- (1) The tenant must increase the rental bond if –
 - (a) the rent increases and the lessor gives notice to the tenant to increase the bond; and
 - (b) the notice is given at least 11 months after –
 - (i) this agreement started; or
 - (ii) if the bond has been increased previously, following a notice given under this clause – the day stated in the notice, or the last notice, for making the increase.
- (2) The notice must state the increased amount and the day by which the increase must be made.
- (3) For subclause (2), the day must be at least 1 month after the notice is given to the tenant.

Division 5 Outgoings

15 Outgoings – s 163

- (1) The lessor must pay all charges, levies, premiums, rates or taxes for the premises, other than a service charge for the premises.

Examples –

council general rates, sewerage charges, environment levies, land tax

16 Service charges – ss 164 and 167

- (1) The tenant must pay the service charge for a service supplied to the premises during the tenancy if –
 - (a) the tenant enjoys or shares the benefit of the service; and
 - (b) the service is stated in this agreement in item 14; and
 - (c) the premises are individually metered for the service.
- (2) However, the tenant is not required to pay an amount for the service that is more than the amount charged by the relevant supply authority (the supplier) for the service.
- (3) If the supplier charges the tenant directly for the service, the tenant must pay the amount of the charge to the supplier when the amount becomes due.
- (4) If the supplier charges the lessor for the service –
 - (a) the lessor must give the tenant copies of the relevant documents about the incurring of the amount of the charge within 4 weeks after the lessor receives the documents; and
 - (b) the tenant must pay the amount of the charge to the lessor within 4 weeks after the lessor gives the tenant copies of the relevant documents.
- (5) For subclause (4)(b), the tenant is not required to pay an amount for the charge if the tenant has not received a copy of the relevant documents.

17 Services for which rent is attributable that become unavailable – s 168

- (1) This clause applies if –
 - (a) the tenant is not required to pay a service charge for a service the tenant enjoys or shares the benefit of; and
 - (b) the service becomes unavailable for use by the tenant because of action taken by the lessor; and
 - (c) the service is a service for which an amount of rent is attributable.
- (2) The rent payable under clause 8 is reduced from the day the service became unavailable.
- (3) The reduction is the amount that reflects the part of the rent that is attributable to the service, either as agreed by the lessor and tenant or, if they do not agree, as decided by a tribunal.
- (4) If the tenant asks the lessor for details of the amount of the rent attributable to service charges for the premises, the lessor must give the tenant a written statement showing –
 - (a) each service for which an amount of rent is attributable; and
 - (b) the amount attributed to the service.

Division 6 Rights and obligations during tenancy**Subdivision 1 Occupation and use of premises****18 No legal impediments to occupation – s 181**

The lessor must ensure there is no legal impediment to occupation of the premises by the tenant as a residence for the term of the tenancy if, when entering into this agreement, the lessor knew about the impediment or ought reasonably to have known about it.

Examples of possible legal impediments –

- if there is a mortgage over the premises, the lessor might need to obtain approval from the mortgagee before the tenancy can start
- a certificate might be required under the *Building Act 1975* before the premises can lawfully be occupied
- the zoning of the land might prevent use of the land as a moveable dwelling park.

19 Vacant possession and quiet enjoyment – ss 182 and 183

- (1) The lessor must ensure the tenant has vacant possession of the premises (other than a part of the premises that the tenant does not have a right to occupy exclusively) on the day the tenant is entitled to occupy the premises under this agreement.

Note – Parts of the premises where the tenant does not have a right to occupy exclusively may be identified in a special term.

- (2) The lessor must take reasonable steps to ensure the tenant has quiet enjoyment of the premises.
- (3) The lessor or the lessor's agent must not interfere with the reasonable peace, comfort or privacy of the tenant in using the premises.

20 Lessor's right to enter the premises – ss 192–199

- (1) The lessor or the lessor's agent may enter the premises during the tenancy only if the obligations under sections 192 to 199 have been complied with.
- (2) Under section 193(4), the lessor or agent may enter the site of the moveable dwelling to carry out maintenance of the site without giving the notice of entry required by section 193(1) if –
 - (a) a special term states the frequency with which the entry is required for carrying out the maintenance and the conditions under which the entry may be made; and
 - (b) the entry is made in accordance with the special term.

Examples of conditions –

- the time and duration of the entry
- the type of maintenance for which the entry is allowed

21 Tenant's use of premises – ss 10 and 184

- (1) The tenant may use the premises –
 - (a) only as a place of residence; or
 - (b) mainly as a place of residence and for another use allowed under a special term.
 - (2) The tenant must not –
 - (a) use the premises for an illegal purpose; or
 - (b) cause a nuisance by the use of the premises; or
- Examples of things that may constitute a nuisance –*
- using paints or chemicals on the premises that go onto or cause odours on adjoining land or sites
 - making loud noises
 - allowing large amounts of water to escape onto adjoining land or sites
- (c) interfere with the reasonable peace, comfort or privacy of a neighbour of the tenant; or
 - (d) allow another person on the premises to interfere with the reasonable peace, comfort or privacy of a neighbour of the tenant.

22 Park rules – ss 52, 68 and 228–236

- (1) This clause applies if the premises are moveable dwelling premises in a moveable dwelling park.
- (2) The lessor must give the tenant a copy of the park rules for the moveable dwelling park when this agreement is given to the tenant for signing.
- (3) If a park rule is changed, the lessor must give the tenant a copy of the rule as changed as soon as practicable after the change takes effect.
- (4) The tenant must comply with the park rules.
- (5) The tenant must comply with a changed park rule if the change has taken effect.

Note – See sections 228 to 236 for what park rules may be made about, how they may be changed and when a change takes effect.

- (6) Subclause (2) does not apply if –
 - (a) this agreement has the effect of continuing the tenant's right to occupy the premises under an earlier residential tenancy agreement; and
 - (b) the lessor gave the tenant a copy of the park rules in relation to the earlier agreement.

23 Number of occupants allowed

No more than the number of persons stated in item 16 may reside at the premises.

Subdivision 2 Standard of premises

24 Lessor's obligations – ss 185–187

- (1) At the start of the tenancy, the lessor must –
 - (a) if the premises are site-only premises – ensure the premises are clean and a fit site for a moveable dwelling; and
 - (b) if the premises are not site-only premises, ensure –
 - (i) the premises are clean and fit for the tenant to live in and are in good repair; and
 - (ii) the lessor is not in breach of a law dealing with issues about the health or safety of persons using or entering the premises; and
 - (c) if the premises are moveable dwelling premises in a moveable dwelling park and the lessor is not a home owner for the premises, ensure –
 - (i) the facilities in the moveable dwelling park are clean, fit for the tenant to use and in good repair; and
 - (ii) the lessor is not in breach of a law dealing with issues about the health or safety of persons using or entering the facilities; and
 - (d) ensure the premises otherwise comply with any prescribed minimum housing standards applying to the premises.
 - (2) While the tenancy continues, the lessor must –
 - (a) if the premises are site-only premises – ensure the premises remain a fit site for a moveable dwelling; and
 - (b) if the premises are not site-only premises –
 - (i) maintain the premises in good repair and in a way that the premises remain fit for the tenant to live in; and
 - (ii) ensure any law dealing with issues about the health or safety of persons using or entering the premises is complied with; and
 - (iii) keep any common area included in the premises clean; and
 - (c) if the premises are moveable dwelling premises in a moveable dwelling park and the lessor is not a home owner for the premises –
 - (i) keep the facilities in the moveable dwelling park clean; and
 - (ii) maintain the facilities in good repair and in a way that the facilities remain fit for the tenant to use; and
 - (iii) ensure any law dealing with issues about the health or safety of persons using the facilities is complied with; and
 - (d) ensure the premises otherwise comply with any prescribed minimum housing standards applying to the premises.
- Note – For about the maintenance, see the information statement.*
- (3) If the premises are site-only premises, the lessor may, while the tenancy continues, make any improvements to the premises the lessor considers appropriate.
 - (4) In this clause – **premises**, other than site-only premises, include any common area available for use by the tenant with the premises.

25 Tenant's obligations generally – ss 188 and 190

- (1) If the premises are site-only premises, the tenant must keep the premises in a way that does not detract from the general standards of the moveable dwelling park, or other general area, where the premises are situated.
- (2) The tenant's obligation under subclause (1) applies having regard to the condition of the premises at the start of the tenancy and any improvements made later by the lessor.
- (3) If the premises are not site-only premises, the tenant –
 - (a) must keep the premises clean, having regard to their condition at the start of the tenancy; and
 - (b) must not maliciously damage, or allow someone else to maliciously damage, the premises.
- (4) However, the tenant's obligations under subclause (3) do not apply to the extent the obligations would have the effect of requiring the tenant to repair, or compensate the lessor for, damage to the premises caused by an act of domestic violence experienced by the tenant.

For more information visit the Domestic violence in a rental property webpage on the RTA website.

26 Tenant's obligations for facilities in moveable dwelling park – s 189

- (1) This clause applies only to an agreement for moveable dwelling premises in a moveable dwelling park.
- (2) The tenant must not –
 - (a) do anything to a facility in the park that makes the facility unfit for use or detracts from its appearance; or
 - (b) intentionally or negligently damage a facility in the park.

Subdivision 3 The dwelling

27 Fixtures or structural changes – ss 207–209

- (1) The tenant may attach a fixture, or make a structural change, to the premises only if –
 - (a) the tenant gives the lessor a request, in the approved form, for approval to attach the fixture or make the structural change; and
 - (b) the lessor agrees to the request; and
 - (c) for body corporate premises—the body corporate agrees to the request.
 - (d) the fixture is attached, or structural change is made, in accordance with the lessor's agreement.
- Note – Fixtures are generally items permanently attached to land or to a building that are intended to become part of the land or building. Attaching a fixture may include, for example, gluing, nailing or screwing the fixture to a wall.*
- (2) The lessor must –
 - (a) decide the request –
 - (i) within 28 days after receiving the request; or
 - (ii) if the premises are not body corporate premises—within a longer period, if agreed to by the tenant and lessor; and
 - (b) advise the tenant of the lessor's decision; and
 - (c) if the lessor agrees to the request and the premises are body corporate premises –
 - (i) state that the lessor's agreement is subject to the agreement by the body corporate; and
 - (ii) give the request to the body corporate within 28 days after receiving the request; and
 - (iii) advise the tenant as soon as reasonably practicable of the body corporate's decision about the request.

Note – A moveable dwelling park may be subject to local laws including, for example, local laws that provide for a local government to apply conditions to the park's licence to operate. The conditions to the park's licence to operate may limit the fixtures or structural changes that may be made to moveable dwelling premises in the moveable dwelling park.

- (3) If the lessor agrees to the request, the lessor must give the tenant an agreement that –
 - (a) is in writing; and
 - (b) describes the nature of the fixture or structural change; and
 - (c) states any conditions of the agreement, including any conditions given by the body corporate.

Examples of conditions –

- that the tenant must maintain the fixture in a particular way
- that the tenant must remove the fixture and must repair damage caused by removing the fixture
- that the lessor must compensate the tenant for the fixture if the tenant can not remove it

- (4) The tenant must comply with any conditions of the agreement given by the lessor or body corporate.

- (5) In this clause –

body corporate premises means premises –

- (a) that are part of a body corporate scheme; and
- (b) for which, under a body corporate law or body corporate by-law, the approval of the body corporate is required for the attachment of a fixture, or the making of a structural change, to the premises.

28 Action by lessor for breach of lessor's agreement about fixture or structural change – s 209A

- (1) This clause applies if –
 - (a) the tenant attaches a fixture, or makes a structural change, to the premises; and
 - (b) the lessor's agreement is given under section 208 to attach the fixture or make the structural change; and
 - (c) the tenant does not attach the fixture, or make the structural change, in accordance with the lessor's agreement.
- (2) The lessor may –
 - (a) take action for a breach of a term of this agreement; or
 - (b) waive the breach and treat the fixture or structural change as an improvement to the premises for the lessor's benefit.

29 Supply of locks and keys – s 210

- (1) The lessor must supply and maintain all locks necessary to ensure the premises are reasonably secure.
- (2) The lessor must give the tenant, or if there is more than 1 tenant, give 1 of the tenants, a key for each lock that –
 - (a) secures an entry to the premises; or
 - (b) secures a road or other place normally used to gain access to, or leave, the area or building in which the premises are situated; or
 - (c) is part of the premises.
- (3) If there is more than 1 tenant, the lessor must give the other tenants a key for the locks mentioned in subclause (2)(a) and (b).

30 Changing locks – ss 211 and 212

- (1) The lessor or tenant may change a lock at the premises only if –
 - (a) the other party to this agreement agrees to the change; or
 - (b) the lessor or tenant has a reasonable excuse for making the change; or
 - (c) the lessor or tenant believes the change is necessary because of an emergency; or
 - (d) the lock is changed to comply with an order of the tribunal.
- (2) However, the tenant may also change a lock at the premises if the tenant –
 - (a) believes the change is necessary to protect the tenant or another occupant of the premises from domestic violence; and
For more information visit the Domestic violence in a rental property webpage on the RTA website.
 - (b) engages a locksmith or other qualified tradesperson to change the lock.
- (3) The lessor or tenant must not act unreasonably in failing to agree to the change of a lock.
- (4) If the lessor or tenant changes a lock, the lessor or tenant must give the other party to this agreement a key for the changed lock, unless –
 - (a) the other party agrees to not being given the key; or
 - (b) the tribunal orders that the key not be given to the other party.
- (5) If the tenant changes a lock under subclause (2) and gives the lessor a key for the changed lock, the lessor must not give the key to any other person without the tenant's agreement or a reasonable excuse.
- (6) The right of the lessor or tenant to change a lock under this clause is subject to a body corporate law or a body corporate by-law that applies to the premises.

Subdivision 4 Damage and repairs

31 Meaning of emergency and routine repairs – ss 214 and 215

- (1) **Emergency repairs** are works needed to repair any of the following –
 - (a) a burst water service or serious water service leak;
 - (b) a blocked or broken lavatory system;
 - (c) a serious roof leak;
 - (d) a gas leak;
 - (e) a dangerous electrical fault;
 - (f) flooding or serious flood damage;
 - (g) serious storm, fire or impact damage;
 - (h) a failure or breakdown of the gas, electricity or water supply to the premises;
 - (i) a failure or breakdown of an essential service or appliance on the premises for hot water, cooking or heating;
 - (j) a fault or damage that makes the premises unsafe or insecure;
 - (k) a fault or damage likely to injure a person, damage property or unduly inconvenience a tenant of the premises;
 - (l) a serious fault in a staircase, lift or other common area of the premises that unduly inconveniences a tenant in gaining access to, or using, the premises.
- (2) Also, **emergency repairs** are works needed for the premises to comply with the prescribed minimum housing standards.
- (3) **Routine repairs** are repairs other than emergency repairs.

32 Nominated repairer for emergency repairs – s 216

- (1) The lessor's nominated repairer for emergency repairs of a particular type must be stated either –
 - (a) in item 17; or
 - (b) in a notice given by the lessor to the tenant.
- (2) The notice must state –
 - (a) the name and telephone number of the nominated repairer; and
 - (b) whether or not the nominated repairer is the tenant's first point of contact for notifying of the need for emergency repairs.
- (3) The lessor must give notice to the tenant of any change of the lessor's nominated repairer or the telephone number of the nominated repairer.
- (4) This clause does not apply if –
 - (a) the lessor has given the tenant a telephone number of the lessor; and
 - (b) the lessor gives notice to the tenant that the lessor is to arrange for emergency repairs to be made to the premises.

33 Notice of damage – s 217

- (1) If the tenant knows the premises have been damaged, the tenant must give notice as soon as practicable of the damage.
- (2) If the premises need routine repairs, the notice must be given to the lessor.
- (3) If the premises need emergency repairs, the notice must be given to the lessor if –
 - (a) there is no nominated repairer for the repairs; or
 - (b) a nominated repairer for the repairs is not the tenant's first point of contact; or
 - (c) a nominated repairer for the repairs is the tenant's first point of contact but the tenant has been unable to contact the repairer after making reasonable efforts.
- (4) If the premises need emergency repairs and there is a nominated repairer of the lessor for the repairs, the notice must be given to the repairer if –
 - (a) the repairer is the tenant's first point of contact; or
 - (b) the repairer is not the tenant's first point of contact but the tenant has been unable to contact the lessor after making reasonable efforts.
- (5) Despite clause 54, a notice under this clause does not need to be written.

- (6) This clause does not apply to the tenant for damage caused by an act of domestic violence experienced by the tenant.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

34 Emergency repairs arranged by tenant – ss 218 and 219

- (1) The tenant may arrange for a suitably qualified person to make emergency repairs of the premises or apply to the tribunal under section 221 for orders about the repairs if –
- (a) the tenant has been unable to notify the lessor or nominated repairer of the need for the repairs; or
 - (b) the repairs are not made within a reasonable time after notice is given.

Note – Section 219A also provides that the lessor's agent may arrange for emergency repairs.

- (2) The maximum amount that may be incurred for emergency repairs arranged to be made by the tenant is an amount equal to the amount payable under this agreement for 4 weeks rent.
Note – For how the tenant may require reimbursement for the repairs, see sections 219(2) and (3) and 220 and the information statement.

Subdivision 5 Pets

35 Keeping pets and other animals at premises – ss 184B and 184G

- (1) The tenant may keep a pet or other animal at the premises only with the approval of the lessor.
- (2) However, the tenant may keep a working dog at the premises without the lessor's approval.
- (3) The tenant has the approval of the lessor to keep a pet at the premises if keeping the pet at the premises is consistent with item 18.

Notes –

- 1 If item 18 states 2 cats, the tenant is approved by the lessor to keep up to 2 cats at the premises.
 - 2 For additional approvals to keep a pet at the premises see clause 37.
- (4) An authorisation to keep the pet or working dog at the premises continues for the life of the pet or working dog and is not affected by any of the following matters –
- (a) the ending of this agreement, if the tenant continues occupying the premises under a new agreement;
 - (b) a change in the lessor or lessor's agent;
 - (c) for a working dog – the retirement of the dog from the service the dog provided as a working dog.
- (5) An authorisation to keep a pet, working dog or other animal at the premises may be restricted by a body corporate by-law, park rule or other law about keeping animals at the premises.

Examples –

- 1 The premises may be subject to a local law that limits the number or types of animals that may be kept at the premises.
- 2 The premises may be subject to a body corporate by-law that requires the tenant to obtain approval from the body corporate before keeping a pet at the premises.

36 Tenant responsible for pets and other animals – s 184C

- (1) The tenant is responsible for all nuisance caused by a pet or other animal kept at the premises, including, for example, noise caused by the pet or other animal.
- (2) The tenant is responsible for repairing any damage to the premises caused by the pet or other animal.
- (3) Damage to the premises caused by the pet or other animal is not fair wear and tear.

37 Request for approval to keep pet – ss 184D and 184E

- (1) The tenant may, using the approved form, request the lessor's approval to keep a stated pet at the premises.
- (2) The lessor must respond to the tenant's request within 14 days after receiving the request.
- (3) The lessor's response to the request must be in writing and state –
- (a) whether the lessor approves or refuses the tenant's request; and
 - (b) if the lessor approves the tenant's request subject to conditions – the conditions of the approval; and
- Note* – See clause 38 for limitations on conditions of approval to keep a pet at the premises.
- (c) if the lessor refuses the tenant's request –
- (i) the grounds for the refusal; and
 - (ii) the reasons the lessor believes the grounds for the refusal apply to the request.
- (4) The lessor may refuse the request for approval to keep a pet at the premises only on 1 or more of the following grounds –
- (a) keeping the pet would exceed a reasonable number of animals being kept at the premises;
 - (b) the premises are unsuitable for keeping the pet because of a lack of appropriate fencing, open space or another thing necessary to humanely accommodate the pet;
 - (c) keeping the pet is likely to cause damage to the premises that could not practicably be repaired for a cost that is less than the amount of the rental bond for the premises;
 - (d) keeping the pet would pose an unacceptable risk to the health and safety of a person, including, for example, because the pet is venomous;
 - (e) keeping the pet would contravene a law;
 - (f) keeping the pet would contravene a body corporate by-law or park rule applying to the premises;
 - (g) if the lessor proposed reasonable conditions for approval and the conditions comply with clause 38 – the tenant has not agreed to the conditions;
 - (h) the animal stated in the request is not a pet as defined in section 184A;
 - (i) keeping the pet would contravene a condition of a licence applying to the moveable dwelling premises;
 - (j) another ground prescribed by a regulation under section 184E(1)(j).
- (5) The lessor is taken to approve the keeping of the pet at the premises if –
- (a) the lessor does not comply with subclause (2); or
 - (b) the lessor's response does not comply with subclause (3).

38 Conditions for approval to keep pet at premises – s 184F

- (1) The lessor's approval to keep a pet at the premises may be subject to conditions if the conditions –
- (a) relate only to keeping the pet at the premises; and
 - (b) are reasonable having regard to the type of pet and the nature of the premises; and
 - (c) are stated in the written approval given to the tenant under clause 37(3).
- (2) Without limiting subclause (1)(b), the following conditions of the lessor's approval are taken to be reasonable –
- (a) if the pet is not a type of pet ordinarily kept inside – a condition requiring the pet to be kept outside at the premises;
 - (b) if the pet is capable of carrying parasites that could infest the premises – a condition requiring the premises to be professionally fumigated at the end of the tenancy;
 - (c) if the pet is allowed inside the premises – a condition requiring carpets in the premises to be professionally cleaned at the end of the tenancy.

- (3) A condition of the lessor's approval to keep a pet at the premises is void if the condition –
 - (a) would have the effect of the lessor contravening section 171 or 172; or
 - (b) would, as a term of this agreement, be void under section 173; or
 - (c) would increase the rent or rental bond payable by the tenant; or
 - (d) would require any form of security from the tenant.
- (4) For subclause (2), the premises are professionally fumigated, and carpets are professionally cleaned, if the fumigation and cleaning are done to a standard ordinarily achieved by businesses selling those services.

Division 7 Restrictions on transfer or subletting by tenant

39 General – ss 238 and 240

- (1) Subject to clause 40, the tenant may transfer all or a part of the tenant's interest under this agreement, or sublet the premises, only if –
 - (a) the lessor agrees in writing to the transfer or subletting; or
 - (b) the transfer or subletting is made under an order of the tribunal.
- (2) The lessor must act reasonably in failing to agree to the transfer or subletting.
- (3) The lessor is taken to act unreasonably in failing to agree to the transfer or subletting if the lessor acts in a capricious or retaliatory way.
- (4) The lessor or the lessor's agent must not require the tenant to pay, or accept from the tenant, an amount for the lessor's agreement to a transfer or subletting by the tenant, other than an amount for the reasonable expenses incurred by the lessor in agreeing to the transfer or subletting.

40 State assisted lessors or employees of lessor – s 237

- (1) This clause applies if –
 - (a) the lessor is an entity receiving assistance from the State to supply rented accommodation; or
 - (b) the tenant's right to occupy the premises is given under the tenant's terms of employment.
- (2) The tenant may transfer the whole or part of the tenant's interest under this agreement, or sublet the premises, only if the lessor agrees in writing to the transfer or subletting.

Division 8 Relocation

41 Application of division

This division applies if the premises are moveable dwelling premises in a moveable dwelling park.

42 Notice to relocate to another site – s 223

- (1) The lessor may give a notice (notice to relocate) to the tenant requiring the tenant to relocate the moveable dwelling to another site in the moveable dwelling park within a stated period only if –
 - (a) either –
 - (i) the relocation is necessary to allow the carrying out of necessary or desirable work in the park or is because of an emergency or is for health or safety reasons; or
Examples of work that might be necessary or desirable – maintenance, repairs, upgrading and restoration
 - (ii) the lessor is a home owner for the dwelling and the lessor must, under a site agreement under the *Manufactured Homes (Residential Parks) Act 2003*, reposition the moveable dwelling; and
 - (b) the other site is, as far as practicable, reasonably comparable to the site currently occupied by the tenant.

- (2) The notice must identify the other site and state the period within which the tenant is to relocate and the reasons for the relocation.
- (3) If the relocation is necessary because of an emergency or for health or safety reasons, the period must be reasonable.
- (4) Otherwise, the period must be a reasonable period of at least 1 month after the notice is given to the tenant.

43 Restriction against enforcing relocation – s 224

The lessor or the lessor's agent must not take any action to enforce the tenant's relocation under a notice to relocate unless the tenant agrees or the tribunal orders the tenant to relocate to the site mentioned in the notice.

44 Effect of relocation – s 225

If the tenant complies with the notice to relocate given to the tenant, the site for this agreement is taken to be the site to which the tenant relocates.

45 Costs and expenses of relocation – s 226

- (1) The reasonable costs and expenses incurred by the tenant in complying with the notice to relocate are payable to the tenant by the lessor.
- (2) The tribunal may, if the tenant applies, make an order requiring the lessor to pay the tenant the amount it considers the tenant is entitled to for the costs and expenses.

Division 9 When agreement ends

46 Ending of agreement – s 277

- (1) This agreement ends only if –
 - (a) the lessor and tenant agree, in a separate written document, to end this agreement; or
 - (b) the lessor gives a notice to leave premises to the tenant under section 326 and the tenant hands over vacant possession of the premises to the lessor on or after the handover day stated in the notice; or
 - (c) the tenant gives a notice of intention to leave premises to the lessor under section 327 and hands over vacant possession of the premises to the lessor on or after the handover day stated in the notice; or
 - (d) the tenant vacates, or is removed from, the premises after receiving a notice from a mortgagee or appointed person under section 317; or
 - (e) the tenant abandons the premises and the period for which the tenant paid rent has ended; or
 - (f) the tribunal makes an order terminating this agreement.
- (2) Also, this agreement ends for a sole tenant if –
 - (a) the tenant gives the lessor a notice ending tenancy interest and hands over vacant possession of the premises; or
Note – See chapter 5, part 1, division 3, subdivision 2A of the Act for the obligations of the lessor and tenant relating to a notice ending tenancy interest.
 - (b) the tenant dies.
Note – See section 324A for when this agreement ends if a sole tenant dies.

47 Condition premises must be left in – s 188

- (1) At the end of the tenancy, the tenant must leave the premises, as far as possible, in the same condition they were in at the start of the tenancy, fair wear and tear excepted.
Examples of what may be fair wear and tear –
 - wear that happens during normal use
 - changes that happen with ageing
- (2) The tenant's obligation mentioned in subclause (1) does not apply to the extent the obligation would have the effect of requiring the tenant to repair, or compensate the lessor for, damage to the premises caused by an act of domestic violence experienced by the tenant.
For more information visit the Domestic violence in a rental property webpage on the RTA website.

48 Keys

At the end of the tenancy, the tenant must return to the lessor all keys for the premises.

49 Tenant's forwarding address – s 205

- (1) When handing over possession of the premises, the tenant must, if the lessor or lessor's agent asks the tenant in writing to state the tenant's new residential address, tell the lessor or lessor's agent the tenant's new residential address.
- (2) However, subclause (1) does not apply if –
 - (a) the tenant has a reasonable excuse for not telling the lessor or lessor's agent the new address; or
 - (b) after experiencing domestic violence, the tenant ended the tenant's interest in this agreement, under chapter 5, part 1, division 3, subdivision 2A of the Act.

For more information visit the Domestic violence in a rental property webpage on the RTA website.

50 Exit condition report – s 66

- (1) The tenant must, on or before the day this agreement ends, prepare and sign a condition report for the premises in the approved form.
Note – For the approved form for the condition report, see the information statement.
- (2) As soon as practicable after this agreement ends, the tenant must give 1 copy of the condition report to the lessor or lessor's agent.
Example of what might be as soon as practicable – when the tenant returns the keys for the premises to the lessor or the lessor's agent.
- (3) The lessor or the lessor's agent must, within 3 business days after receiving the copy of the condition report –
 - (a) sign the copy; and
 - (b) if the lessor or lessor's agent does not agree with the report – show the parts of the report the lessor or lessor's agent disagrees with by marking the copy in an appropriate way; and
 - (c) if the tenant has given a forwarding address to the lessor or lessor's agent – make a copy of the report and return it to the tenant at the address.
- (4) The lessor or lessor's agent must keep a copy of the condition report signed by both parties for at least 1 year after this agreement ends.

51 Goods or documents left behind on premises – ss 363 and 364

- (1) The tenant must take all of the tenant's belongings from the premises at the end of the tenancy.
- (2) The lessor may not treat belongings left behind as the lessor's own property but must deal with them under sections 363 and 364.

Division 10 Miscellaneous

52 Supply of goods and services – s 171

- (1) The lessor or the lessor's agent must not require the tenant to buy goods or services from the lessor, the lessor's agent or a person nominated by the lessor or lessor's agent.
- (2) Subclause (1) does not apply to –
 - (a) a requirement about a service charge; or
 - (b) a condition of an approval to keep a pet if the condition –
 - (i) requires the carpets to be cleaned, or the premises to be fumigated, at the end of the tenancy; and
 - (ii) complies with clause 38; and
 - (iii) does not require the tenant to buy cleaning or fumigation services from a particular person or business.

53 Lessor's agent – s 206

- (1) The name and address for service of the lessor's agent is stated in item 3.
- (2) Unless a special term provides otherwise, the lessor's agent may –
 - (a) stand in the lessor's place in any application to the tribunal by the lessor or the tenant; or
 - (b) do any thing else the lessor may do, or is required to do, under this agreement.

Note – See also sections 24 and 25.

54 Notices

- (1) A notice under this agreement must be written and, if there is an approved form for the notice, in the approved form.
- (2) A notice from the tenant to the lessor may be given to the lessor's agent.
- (3) A notice may be given to a relevant party –
 - (a) by giving it to the relevant party personally; or
 - (b) if an address for service for the relevant party is stated in item 1, 2 or 3 – by leaving it at the address or sending it by prepaid post as a letter to the address; or
 - (c) if an electronic address for a type of electronic communication for the relevant party is stated in item 1, 2 or 3 and item 4 indicates that a notice may be given by that type of electronic communication – by sending it by electronic communication to the electronic address in accordance with the *Electronic Transactions (Queensland) Act 2001*.
Examples of types of electronic communication – email, facsimile, text message
- (4) If no address for service is stated in item 2 for the tenant, the tenant's address for service is taken to be the address of the premises.
- (5) A relevant party may change their address for service or electronic address only by giving notice to each other relevant party of their new address for service or a new electronic address.
- (6) On the giving of a notice of a new address for service or new electronic address for a relevant party, the address for service or electronic address stated in the notice is taken to be the relevant party's address for the relevant item in this agreement.
- (7) A relevant party may withdraw their consent to notices being given to them by electronic communication, or to a specific electronic address, only by giving notice to each other relevant party that notices are no longer to be given to the relevant party electronically, or to that electronic address.
- (8) Unless the contrary is proved –
 - (a) a notice left at an address for service is taken to have been received by the person to whom the address relates when the notice was left at the address; and
 - (b) a notice sent by post is taken to have been received by the person to whom it was addressed when it would have been delivered in the ordinary course of post; and
 - (c) a notice sent by electronic communication to an electronic address is taken to have been received by the recipient –
 - (i) if the type of electronic communication is email – when the email enters the recipient's email server; or
 - (ii) if the type of electronic communication is facsimile – when the sender's facsimile machine produces a transmission report indicating all pages of the notice have been successfully sent; or
 - (iii) otherwise – at the time stated in the *Electronic Transactions (Queensland) Act 2001*, section 24.
- (9) In this clause –
relevant party means –
 - (a) the lessor; or
 - (b) the tenant; or
 - (c) if there is an agent of the lessor – the lessor's agent.

Part 3 Special terms Insert any special terms here and/or attach a separate list if required. See clause 2(4) to 2(6)

The tenant/s must receive a copy of the information statement (Form 17b) and a copy of any applicable park rules if copies have not previously been given to the tenant/s. **Do not send to the RTA—give this form to the tenant/s, keep a copy for your records.**

 **Other languages:** You can access a [free interpreter service](#) by calling the RTA on 1300 366 311 (Monday to Friday, 8:30am to 5:00pm).

Signature of lessor/agent

Name/trading name

Signature

Date

Signature of tenant 1

Print name

Signature

Date

Signature of tenant 2

Print name

Signature

Date

Signature of tenant 3

Print name

Signature

Date